

Colonial Mobile Manor
900 Sd1 Ave. East (U.S. 301 North)
Palmetto, Florida 34221 Phone: (941) 722-3191

Lease Agreement

This lease is made this 25th day of October, 2021 between Colonial Mobile Manor, Limited, hereinafter called "Landlord," and Sylvia Hernandez + Frank Jose Cuvelos hereinafter called "Resident." The Landlord leases to the Resident and the Resident leases from the Landlord LOT# 70 in Colonial Mobile Manor in Palmetto, Florida for a term to commence NOV 1 2021 and terminate December 31st annually, and thereafter on a month-to-month basis, commencing on the first day of each month. Regardless of the length of residency, resident understands that rent increases may be put into effect with proper notice as is required by the Mobile Home Tenant Act ("the Act"). Notice of the increase shall be given in accordance with the Act prior to the effective date of the said increase.

The tenant agrees to pay a deposit of \$ _____

The amount of monthly rent initially charged for the manufactured home space is the sum of \$ 1654.50 due on the first day of each month. Occupancy is based on one or two residents per lot. Each additional resident is charged \$ 900.00 per year, payable \$ 75.00 per month. Rent received after the date due is subject to an additional late rent fee of \$ 45.00. In addition, Resident agrees to pay all applicable State and Local taxes.

It is mutually agreed by the parties hereto, their heirs, executors, administrators, and successors that this rental is made and tenancy accepted upon the Rules and Regulations of Colonial Mobile Manor, Limited dated 01/01/2011, a copy of which the Resident acknowledges having received and read, and Resident agrees to abide by. Violation of any of the Rules or conditions of this lease by the Resident shall constitute a breach of the agreement.

In the case of non-renewal of this lease, the terms of this lease shall continue unless a new lease is entered into between the Landlord and the Resident or the tenancy is terminated.

This mobile home park is zoned "mobile home" under the zoning authority of Manatee County and the City of Palmetto, with no plans for changing the use of the land.

The Landlord and the Resident have respectfully signed this lease as of the day and year first written above.

Colonial Mobile Manor Limited

By: [Signature]

X [Signature]
Resident

X [Signature]
Resident

EXHIBIT

A

COLONIAL MANOR MHC HOLDINGS, LLC
d/b/a COLONIAL MANOR
900 9th Avenue East
Palmetto, FL 34221
941-722-3191

DEMAND FOR PAYMENT OF LOT RENTAL AMOUNT

Pursuant to Section 723.061, Florida Statutes

Date: February 7, 2025

TO: Sylvia Hernandez Avalos, Frank J. Avalos
And Any Unknown Party(s) in Possession
900 9th Avenue E Lot #70
Palmetto, FL 34221
CMRR # 9589 0710 S2 TO 2091 7619 S9

FROM: Colonial Manor MHC Holdings, LLC
900 9th Avenue East
Palmetto, FL 34221
Telephone: (941)-722-3191
Cheryl Peake, Manager

**VIA POSTING/HAND DELIVERY, REGULAR AND CERTIFIED MAIL- RETURN RECEIPT
REQUESTED**

You are notified that you are in default in the payment of the lot rental amount for your manufactured home lot. Base lot rental amount is payable to the Landlord at the rate of \$821.00 per month.

You have failed to pay the past due lot rental amounts for the months of January, 2025 through February, 2025, in the amount of \$2,538.61, consisting of the items shown below. The total lot rental amount due as of the date of this demand is \$2,538.61, payable to the address above.

- Rent of February 1, 2025 to February 28, 2025 in the amount of \$821.00
- Late Fee on February 1, 2025 to February 28, 2025 in the amount of \$15.00
- Last month balance in the amount of \$1,672.61

DEMAND IS HEREBY MADE that you pay the total lot rental amount now due, or deliver possession of the premises to the undersigned within five (5) days from the date of delivery of this notice (allowing five (5) days from the postmark date excluding Saturdays, Sundays and legal holidays). If the total lot rental amount now due is not paid on or before February 14, 2024, your rental agreement will be terminated, and you must immediately vacate the premises.

If you do not pay the total lot rental amount now due within five (5) days from the delivery of this notice (excluding Saturdays, Sundays, and legal holidays), an action for eviction pursuant to Chapter 723.061, Florida Statutes, will be commenced against you. If such action is commenced for eviction, you may also be held liable for court costs and reasonable attorney's fees incurred by the community in order to prosecute such an eviction action. If you have any questions concerning this notice, please contact the community office at the telephone number listed above.

PLEASE GOVERN YOURSELF ACCORDINGLY

MAILED CERTIFIED RETURN RECEIPT ON: February 7, 2025



BY: Ching Peate
Employee Signature

COPY POSTED ON PREMISES (900 9th Ave E, Lot #70)

POSTED ON: 2-7-25 @ 5 pm
(date/time)

POSTED BY: Ching Peate
(Employee Signature)

Colonial Manor MHC Holdings, LLC

Vs.

Sylvia Hernandez Avalos and Frank J Avalos